

4 (citations omitted). The plaintiff’s § 1983 claims are against four Minnesota county attorneys in their “‘official capacity’ only.” *Id.* They seek “a declaration that § 211B.02 is unconstitutional and a permanent injunction against its enforcement.” *Id.*

On July 20, 2020,² the plaintiffs moved for a preliminary injunction to enjoin the county attorneys from enforcing Minn. Stat. § 211B.02 pending the entry of a final judgment. The county attorneys opposed the motion and submitted declarations in which they “testif[ied] . . . that they never have initiated civil or criminal proceedings for violations of § 211B.02, that they are ‘not currently investigating’ any such violations, and that they have ‘no personal intention’ to commence proceedings.” *Id.* at 13 (quoting county attorneys’ declarations).

After analyzing the *Dataphase*³ factors, the district court denied the plaintiffs’ preliminary-injunction motion. Although it concluded that the plaintiffs had Article III standing, it determined that the plaintiffs were not likely to succeed on the merits of their First Amendment claims because of their “inability to satisfy a prerequisite to their claims under *Ex parte Young*, 209 U.S. 123 (1908).” *Id.* at 10. In reaching its decision, the court observed that the *Ex parte Young* “exception [to Eleventh Amendment immunity] does not apply ‘when the defendant official has neither

²On September 30, 2019, the county attorneys moved to dismiss the plaintiffs’ complaint. The district court denied the motion, but it dismissed with prejudice the claims of plaintiffs Minnesota RFL Republican Farmer Labor Caucus, Bonn Clayton, and Michelle MacDonald based on their challenge to the first sentence of Minn. Stat. § 211B.02.

On November 27, 2019, the Minnesota Attorney General intervened in the case “for the limited purpose of defending the constitutionality of Minn. Stat. § 211B.02.” R. Doc. 30, at 1.

³*Dataphase Sys., Inc. v. C L Sys., Inc.*, 640 F.2d 109 (8th Cir. 1981) (en banc).